

Data Theatre

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The module names and describes the phenomenon of a 'data theatre' which has three elements, an aspect of a data injustice, a data silence, and a data violence. Through the use of a case study of ratings in platform work, De Souza describes how often while data is touted to be objective and neutral to give us a clear, and fair understanding of a phenomenon, we instead only see a performance of these attributes. The module offers some insights into how to recognize this phenomenon, as well as how to challenge its emergence.

Lecture Transcript

0:02 Hello everyone, my name is Siddharth Peter de Souza and I'm a postdoctoral researcher at the Global Data Justice Project at the Tilburg Institute for Law, Technology and Society. I'm very happy to join you to offer a session as part of the AI Ethics: Global Perspectives course series. My module today is on a phenomenon which I named "Data Theatre". I would like to talk to you a little bit about the context within which I see this phenomenon emerging, some of its key characteristics, the ways in which one can identify it, as well as ways in which one can contest, as well as challenge it.

0:46 I would like to provide you with an outline of the session before going any further. I will begin, firstly, by describing what a data theater is. To me, there are three main factors. The first is the idea of a data injustice, which I will argue is where there is a manufacturing of a sense of fairness, of transparency, of accountability and of equality when it comes to data, because it is seen as something that's neutral and objective. I would like to problematize how in these instances, rather than actually ensuring any real justice, there is only a manufacturing of a justice that is taking place. The second aspect that I would like to cover is the aspect of a data silence, which I will argue is the situation where only that which is measured has value. The third aspect that I'd like to cover is the aspect of data violence, which is where data is often seen as something that only is neutral and very clear. It's facts, it's not opinions when it comes to a particular phenomenon. I will argue that the ways in which data has after effects in the sense of how it constrains and restricts people from participating in everyday life constitutes a data violence. In order to exemplify and explain the phenomenon of a data theater and make it less abstract, I would like to do so using an example. I will use the case of ratings in platform work and in thinking about platform work use examples from the ride hailing sector, from the food delivery sector, the sectors from delivery of products and services.

2:41 I would like to explain firstly, what I understand ratings to be; look at how ratings are perceived of in terms of being seen as objective truths, as facts; look at how ratings in platform work assume a form of evaluation of relationships between different actors; as well as a tool of management and marginalization. In using the case of ratings and platform work, I would like to then unpack what are the different ways in which a data theater is

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emerging amongst us, and why it is important to articulate this as a phenomenon and also challenge the ways in which it's permeating and constraining how people are able to live their lives.

3:31 So, what is a data theater and why the notion of a theater? There are two aspects that assume importance here. The first is whereas data is meant to project a particular set of ideals, because it is seen to be objective, it is seen to be neutral. And in doing so allows us a capacity to increase accountability, transparency, and in doing so enhance the agency capacities and freedoms of people to claim rights and entitlements due to them. I will argue however, that in many instances, this is only a performance of these attributes. Instead, what we are seeing is just like in a theater, where one has the opportunity to observe, to see, to watch. We can see this performance taking place without there being any real and material effects that come from it. The theater therefore becomes a space where one can observe different ways in which data is said to have certain stated objectives and stated outcomes. But how these stated objectives and outcomes are often very divorced from a reality within which they are borne out and the reality within which they need to be negotiated.

4:59 Why is this an issue that's worth examining? To me, there are several aspects to this issue. Firstly, when one thinks about data, how are we accounting for the ways in which data represents people's lived experiences? Secondly, what kind of narratives are being promoted in the data that is used to describe a particular phenomenon? Which narratives are prioritized? Which narratives become more visible? But which are also being sidelined? And in thinking about these different questions, what are the kinds of politics that actually go into making the decisions that result in some narratives having a greater prominence than others? The third aspect that I'd like to reflect on which makes this an issue worth examining, is the fact of the importance the data has in terms of determining decisions, whether it is in law, it's in policy, it's in regulation, and examining the sort of governance implications that data has in terms of structuring relations and structuring behaviors in society. And finally, what are the ways in which one can challenge and contest particular notions or ideas of truth that emerge when data is constructed, when data categorizes, and explains particular phenomenon?

6:32 So to do this, I wanted to use the example of ratings and platform work because what do ratings really do? Ratings are tools that are able to describe complex situations through standardized formats. They do so by explaining certain criteria. For instance, if one was to rate someone for a ride hailing service, or for a food delivery service, you would account for facts of timeliness, cost, efficiency. So ratings structure the way in which relations take place between a customer and a worker based on what the company determines to be good service. It ensures a commensurability because it creates benchmarks, and these benchmarks then become the basis upon which one gets a sense of what is good service and what is not.

7:34 But ratings don't just have a way of telling us about a particular phenomenon. They're not just a way of knowing. They also have governance implications. Because the ways in which ratings are then used as performance evaluation, as tools to determine the long term implications of a particular service, they have also governance implications. And we can see this in the ways in which ratings are used in different fields. For instance, in evaluating a university or evaluating teachers, you determine which university you may go to on the basis for instance of ratings and rankings, or which teachers or which class to take based on what you've seen online. They're also used to determine, for instance, whether a country has a functioning legal system which supports the rule of law. So in many ways, in all these complicated interactions, ratings become a tool of reducing

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this complexity to standardized formats. And why is this then an example of a data theater? I will now take you through each of the different aspects of a data theater starting with a data injustice.

8:50 For data injustice, what I'd like to introduce is the notion that a data injustice is a situation where the supposed neutrality and objectivity of data trumps questions of visibility and representation. So, the fact that we have something that can tell us in very clear terms about a particular phenomenon sometimes does not allow us to then problematize what are the ways in which this phenomenon has actually been constructed. The second aspect is, when one thinks about the description of this phenomenon, are we accounting for the fact that there are different narratives that may exist and how are we ensuring that the peoples whose narratives are part of this phenomenon actually have the ability to control it? So what we are getting therefore is on one hand, a particular sense that this is something that is neutral, that will give us a clearer understanding of a particular problem. But on the other hand, we have a situation where the agency of people to be able to challenge this particular interpretation becomes limited, because of the ways in which these interpretations very quickly become standardized understandings of particular problems. This is why I argue that a data injustice suggests that there is a manufacturing of fairness because under the garb of making things standardized, we are reducing the capacity to problematize it.

10:28 Now, let's think of this from an example of ratings. There was a case in India a couple of years ago, where there was a clash between a customer and a worker, and a representative from a delivery company made the following statement. They said, "X has made 5000 deliveries for us so far, and has a 4.75 star rating on our platform, which is one of its highest. He's been working for over 26 months. And these are facts, not opinions or inferences." In this instance, ratings create categories of who is seen as efficient, who is seen as productive, who is seen as trustworthy. Measurable concepts, which are seen to be ways of interpreting the relationship between person X and person B.

11:22 What are the ways in which each of these ratings have emerged? They've emerged from subjective understandings of those relationships. Whether this is when someone has made a rating on a whim, or on a bad day, or when they've been feeling particularly generous. So how far can we think about these ratings as being not just influences but as facts, as a person argues to us? Why this becomes important is because ratings then determine the capacity of the person to continue to work in this platform. It becomes the basis upon which they get future employment. It becomes the way in which they're evaluated, when there may be a particular clash. But what is unclear in this rating is what is the capacity of the worker to be able to challenge it—to be able to challenge what is an assessment of their worth, their efficiency, their productivity? And in how far are we able to account for the fact that the voice of the person that is being rated is often one that is invisible in this process?

12:38 The second aspect of a data theater is the argument that only that which is measured has value. This raises the question of what really is measured? What are the decisions that go into collecting types of data, sharing data? And also what kinds of issues are prioritized and deprioritized? So what can be made invisible, is also a deliberate proactive decision. Producing data silences, I argue, is an active process, because one takes into account the consequences that emerge from these different silences.

13:19 Let's take this as an example. In this powerful quotation from Renaldi, one sees how a worker interprets their performance rating. They say, "My performance rating has never dropped below 5.0. I'm never late in

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picking up or delivering cargo. I've never canceled an order. The rating matters. If you go below a 4.9, you don't get prioritized by the algorithm for orders.” So we have a situation here, where the ratings are structuring relations in platform work. They're determining ways in which people continue to ensure that they are productive, that they're alert, they're always on call. They're often tied to incentive targets, which means that if you maintain a certain rating, it is likely that you will get bonus payments, it is likely that you will get future work. But what this indicates is that instead we have a situation where ratings also become a tool of surveillance. They create social worlds around them, because they determine what is important and what is not.

14:35 And this is where the question of a silence really emerges. Because only that which has value and in this instance, being a productive, efficient worker has value, everything else is sidelined. In this particular case, the worker is really clear that they need to act in a way in which they do not allow their rating to drop below a particular level, because in doing so, the implications are severe. The implications ensure that not only will they be de-platformed potentially, but they will also be de-prioritized by the ways in which the app is created. So we have a second example, where when we think of data as being something that is meant to offer a neutral and fair understanding, we are seeing rather that these are deliberate silences that are emerging that result in a real disjuncture, between what the aspirations and ideals of data may be, and how they sort of play out in everyday life.

15:51 The third aspect that I'd like to talk a little bit about is the notion of a data violence. Now in this situation, one of the reasons to look at data violence is to also challenge the notion that the data that is used only has a limited function. It is only used in a particular circumstance, whether it is to do with work, whether it's to do with evaluation. What I want to try and argue is what are the after effects that actually emerge from how data is used? What are the implications that this has for access, for agency and for participation of a particular worker?

16:34 For instance, here are a couple of examples of how ratings have actually been used as tools of management and of marginalization. So in one case, the head of a workers union, Shaik Salauddin mentions, says, “I have to beg for each and every rating, and the customer demands extra services. If I say I can't do something, he says, ‘Don't you want a rating?’ He doesn't say tip, mind you, he is only talking about the rating.” The rating therefore creates a particular hierarchy between the customer and the worker. The customer assumes a managerial position. Now in doing this, going back to the original illustration with which we began this presentation, in how far can we actually think about ratings as being facts, not opinions that are devoid from any of the power structures that actually govern its effects. This is important to sort of center because what we are seeing here is an illustration where the customers themselves become managers.

17:46 It is not just in this instance, take another example, from a recent case where Amazon set up something called the “Amazon Delivery Premier League”. In this particular instance, as is described in this article by Christopher, “Each hour spent on the platform collecting packages from many warehouses, delivering them to customers' units constitutes a ‘run’, like the game cricket. The hours spent mean the more runs you can accumulate, ultimately determining what kind of rewards you can receive.” So we have a situation here, where there is an incentive to keep working on the platform, to spend more and more hours on the platform. And in doing so, none of this accounts for what are the physical, the mental, effects that this will have on the individual. So we have a situation here where the argument can be that ratings and data give us a clear sense of the ability of the worker. But what this does not tell us is what are the kinds of violences and what are the kinds of exploitations

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that are being meted out to a worker as a consequence of being governed and being ruled by data as it's constructed through ratings.

19:08 So, what I'd like to say is how we have now seen different aspects of a data theatre, which starts with these broad ideals of agency, of capacity, of neutral units, of objectivity, but how in this case of ratings, we see how it, it sort of creates injustices, it embeds silences, and it encourages violences. And if we do not challenge the notion with which we may blindly agree or use data, we are subscribing to then a theater around it.

19:51 To conclude, I would like to say that if we recognize data theatre as a phenomenon, what we can then do is we can challenge the supposed neutrality and objectivity of data. We have the capacity to problematize the governance effects that may emerge from data. And we're also able to address the suggested versus the real impacts the data has as it mediates and controls people's lives. Thank you very much for attending. And at the end of the slides, there are also sources which will also be provided in the description. Thank You.